

1. Line 200 through 205:

200 (i) administrative officers, other cabinet members, and a general counsel described in
 201 Section 53H-3-405:
 202 (A) who are at-will employees;
 203 (B) who serve ~~§~~→ the institution ~~←§~~ in the administrative, cabinet, or general
 203a counsel role at the
 204 pleasure of the president; and
 205 (C) whom the president may remove at any time; and

2. Line 283 through 289:

283 (1) Recognizing the status of degree-granting institutions within the Utah System of Higher
 284 Education as bodies politic and corporate, the president of a degree-granting institution
 285 may appoint attorneys to:
 286 (a) provide legal advice to the degree-granting ~~§~~→ institution's administration
 286a institution ~~←§~~ ; and
 287 (b) coordinate legal affairs within the degree-granting institution.
 288 (2) A degree-granting institution shall fund compensation costs and related office expenses
 289 for an attorney described in Subsection (1) within existing budgets.

3. Line 301 through 306:

301 (iv) serve in or exercise:
 302 (A) a role outside the scope of authority that board rules described in Subsection
 303 (4) establish; or
 304 (B) ~~§~~→ [{ a non-legal administrative role or in another }] an ~~←§~~ administrative ~~§~~→
 304a role, ~~←§~~ function ~~§~~→ , ~~←§~~ or office ~~§~~→ , except for a primarily legal or
 304b regulatory role or as outlined in the board's rules described in Subsection (4) ~~←§~~ ;
 305 and
 306 (b) shall cooperate with the Office of the Attorney General in providing legal

4. Line 307 through 310a:

307 representation to a degree-granting institution.
 308 (6) Notwithstanding Subsection (1), a president of a degree-granting institution may not

309 appoint, contract, hire, or otherwise retain outside legal counsel for the purpose of
310 prosecuting or defending litigation §→ without the written consent of the attorney
310a general or the attorney general's designee ←§ .

5. Line 645 through 661:

645 counsel may not act as an assistant attorney general nor as a special assistant attorney
646 general unless the attorney general [shall so authorize]authorizes.[-]
647 (3) Unless the attorney general hires [such-]legal counsel from outside the attorney general's
648 office §→ or authorizes the agency to hire outside counsel ←§ , the attorney general shall
648a remain the sole legal counsel for [that]each agency.[-]
648b §→ (4) If the attorney general authorizes an agency to hire outside counsel under
648c Subsection (3), and if the agency hires outside counsel, the agency is responsible for the
648d costs of services the outside counsel renders to the agency.
649 [{(4) If outside counsel is hired for an agency, then the attorney general shall
649a approve the
650 costs of any services [to be rendered by this counsel shall be approved by
650a the attorney
651 general before these costs are incurred]the outside counsel renders before }
651a the outside }] ←§
652 §→ [{counsel incurs the costs.[-]
653 [{(5) (a) The attorney general shall approve all billing statements from outside counsel
654 and] described in this section. }]
655 [{(b) The agency shall pay the full costs of [this counsel unless the
655a agency by legislative
656 appropriation or in the form of costs, fees, fines, penalties, forfeitures or proceeds
657 reserved or designated for the payment of legal fees receives from any other source
658 the equivalent cost or a portion thereof, in which case the attorney general may bill
659 the agency for the services; provided, the agency may deduct any unreimbursed
659a costs
660 and expenses incurred by the agency in connection with the legal service rendered ←§
661 §→ [{the outside counsel described in Subsection (5)(a). ←§